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Suriname

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.[1] It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The Committee on the Elimination of Racial Discrimination encouraged Suriname to consider ratifying the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families and the International Convention for the Protection of All Persons from Enforced Disappearance.[2]

3. The Human Rights Committee recommended that Suriname consider ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.[3]

4. The United Nations Educational, Scientific and Cultural Organization (UNESCO) recommended that Suriname ratify the Optional Protocol to the International Covenant on Economic, Social and Cultural Rights.[4]

5. The United Nations country team stated that, although Suriname had abolished the death penalty in the Penal Code in 2015 and in the Military Penal Code in 2021, ratification of the Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty, remained pending.[5]

6. The Human Rights Committee recommended that Suriname consider acceding to the Convention relating to the Status of Stateless Persons and the Convention on the Reduction of Statelessness.[6]

7. The Working Group of Experts on People of African Descent urged Suriname to ratify the Indigenous and Tribal Peoples Convention, 1989 (No. 169), of the International Labour Organization (ILO).[7]

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8. The Committee on the Elimination of Racial Discrimination encouraged Suriname to consider ratifying the ILO Domestic Workers Convention, 2011 (No. 189).[8]

9. UNESCO recommended that Suriname ratify the Convention against Discrimination in Education.[9]

10. The United Nations country team recommended that Suriname consider issuing a standing invitation to the special procedure mandate holders of the Human Rights Council.[10]

11. The Human Rights Committee was concerned by information received from the State that judgments of the Inter-American Court of Human Rights regarding the rights of Indigenous Peoples, particularly in the cases of *Moiwana Community v. Suriname* (2005), *Saramaka People v. Suriname* (2007) and *Kaliña and Lokono Peoples v. Suriname* (2015), had been only partially implemented. It called upon Suriname to ensure the full implementation of the judgments of the Inter-American Court of Human Rights regarding the rights of Indigenous and tribal peoples.[11]

III. National human rights framework

1. Constitutional and legislative framework

12. The Committee on the Elimination of Racial Discrimination recommended that Suriname prioritize the drafting and adoption of a comprehensive anti-discrimination law, within a clear time frame and with the effective and meaningful participation of and consultation with civil society organizations and members of Indigenous and tribal peoples, and ensure that it included a definition of racial discrimination in line with article 1 of the International Convention on the Elimination of All Forms of Racial Discrimination and that it expressly prohibited both direct and indirect racial discrimination in the public and private spheres.[12]

13. The same Committee recommended that Suriname review and amend its legislative framework, particularly the Penal Code, to explicitly criminalize racist hate speech and hate crimes in line with article 4 of the Convention, and ensure that the framework included all the grounds of discrimination recognized in article 1 of the Convention.[13]

14. The United Nations country team recommended that Suriname enact comprehensive legislation prohibiting discrimination against persons with disabilities in education, employment and access to services and public facilities, in accordance with the provisions of the Convention on the Rights of Persons with Disabilities.[14]

15. The United Nations country team recommended that Suriname adopt legislative and administrative measures to address structural discrimination against Maroon and Indigenous Peoples, in line with the recommendations of the Working Group of Experts on People of African Descent.[15]

2. Institutional infrastructure and policy measures

16. The Human Rights Committee recommended that Suriname expedite the establishment of a national human rights institution in accordance with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles) and carry out an open, transparent and meaningful consultation process on the draft law establishing the institution, ensuring the participation of a wide range of stakeholders, including civil society organizations and Indigenous and tribal peoples.[16]

17. The same Committee called upon Suriname to establish a national preventive mechanism for the prevention of torture and other cruel, inhuman or degrading treatment or punishment.[17]

18. The United Nations country team noted that, while the Child Ombudsman Institute had been established in April 2025, it was not yet operational, its bureau had not been staffed and it was not yet functioning as an independent complaint mechanism. The country team recommended that Suriname operationalize the Institute.[18]

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

19. The Independent Expert on human rights and international solidarity stated that a primary concern of many stakeholders was the increased use of racialized and ethnic stereotypes and hate speech among politicians, including on social media during election campaigns.[19]

20. The Committee on the Elimination of Racial Discrimination remained concerned about the situation of Indigenous and tribal peoples, and migrants, refugees and asylum-seekers, who faced persisting discrimination in accessing and enjoying their human rights.[20]

21. The same Committee was concerned about reports of the limited access of those living in remote areas, most of whom belonged to Indigenous and tribal peoples, to adequate public services, education and healthcare.[21]

22. The United Nations country team stated that structural discrimination against Maroon and Indigenous communities persisted, with both groups experiencing marked inequalities in access to education, employment, healthcare and social services.[22]

23. The Working Group of Experts on People of African Descent urged Suriname to take firm measures to combat stereotypes, negative perceptions and degrading expressions against people of African descent through education programmes, awareness-raising campaigns on the prohibition of racial discrimination and the promotion of tolerance, and to explicitly criminalize hate speech in its legislation.[23]

2. Right to life, liberty and security of person, and freedom from torture

24. The Human Rights Committee, while welcoming the ratification of the Convention against Torture in 2021, was concerned that the Penal Code lacked a comprehensive definition of torture and ill-treatment aligned with the International Covenant on Civil and Political Rights and other relevant international standards.[24]

25. The same Committee recommended that Suriname conduct prompt, thorough, effective, transparent and impartial investigations into all allegations of torture and ill-treatment, in line with the Manual on the Effective Investigation and Documentation of Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (Istanbul Protocol), and ensure that perpetrators were prosecuted and, if convicted, punished appropriately and that victims received full reparation.[25]

26. The United Nations country team recommended that Suriname establish an independent complaints mechanism to receive, investigate and adjudicate complaints of torture, ill-treatment and excessive force in detention, with meaningful sanctions for perpetrators.[26]

27. The Human Rights Committee was concerned by the frequency of recourse to pretrial detention, including as a result of the lack of an effective bail system, and that the duration of pretrial detention was often excessive and inadequately monitored. It recommended that Suriname establish an effective bail system and ensure that pretrial detention was used only as an exceptional measure and for as short a time as possible.[27]

28. The same Committee recommended that Suriname enhance its efforts to improve the conditions in places of deprivation of liberty, in line with the International Covenant on Civil and Political Rights, the United Nations Standard Minimum Rules for the Treatment of Prisoners (the Nelson Mandela Rules) and the United Nations Rules for the Treatment of Women Prisoners and Non-custodial Measures for Women Offenders (the Bangkok Rules).[28]

29. The Working Group of Experts on People of African Descent recommended that Suriname enhance its efforts to improve the conditions in places of deprivation of liberty, in

particular at the Santa Boma prison, in line with international standards, and ensure the provision of food and water in sufficient quantity and of sufficient quality, adequate sanitation for all persons deprived of their liberty and education and training for inmates.[29]

30. The Human Rights Committee recommended that Suriname ensure adequate access to healthcare, including mental healthcare, for all persons held in places of deprivation of liberty.[30]

31. The same Committee recommended that Suriname ensure that the juvenile justice system took into consideration the specific needs of children in conflict with the law and that the detention of children was used only as a measure of last resort, for the shortest appropriate period of time and subject to regular review, with a view to their release.[31]

3. Administration of justice, including impunity, and the rule of law

32. The same Committee was concerned that grave human rights violations that had occurred during the de facto military regime (1980–1991) continued to go unpunished, that the victims remained without adequate remedies and that Suriname had yet to implement a comprehensive and effective framework for witness protection.[32]

33. The United Nations country team recommended that Suriname invest urgently in expanding the judiciary, including judges, administrative staff and specialized experts, to address case backlogs and ensure trial within a reasonable time.[33]

34. The United Nations country team recommended that Suriname establish and adequately fund a sustainable legal aid system, ensuring meaningful and continuous legal representation for all indigent persons, including those in pretrial detention.[34]

35. The Human Rights Committee recommended that Suriname ensure that persons arrested or detained on a criminal charge were brought promptly before a judge or other officer authorized by law to exercise judicial power, within 48 hours, in order to bring their detention under judicial control.[35]

36. The same Committee recommended that Suriname ensure that all fundamental legal safeguards were guaranteed in practice to all persons deprived of their liberty from the very outset of the deprivation, including that they were informed of their right to legal counsel and promptly provided with access to such counsel.[36]

37. The United Nations country team recommended that Suriname strengthen child-sensitive juvenile justice by ensuring full implementation of alternative sentencing, as detailed in a 2025 government decree, expanding rehabilitation programmes, establishing separate and adequate facilities for all detained children, enhancing trained human resources and upgrading the Opa Doeli pretrial detention facility to meet minimum standards, including functional complaints mechanisms and structured links to community-based reintegration support.[37]

38. The Human Rights Committee recommended that Suriname take all steps necessary to rapidly and fully operationalize the Anti-Corruption Commission and ensure its independence, and ensure that all allegations of corruption were promptly, thoroughly and impartially investigated and that perpetrators were prosecuted and, if found guilty, adequately sanctioned.[38]

4. Fundamental freedoms

39. The same Committee remained concerned by reports of intimidation, harassment and arbitrary arrests of journalists, in particular those expressing criticism of the executive branch of the Government or investigating high-level corruption. It was particularly concerned that defamation was still criminalized and punished with the deprivation of liberty, including vaguely defined offences in the Penal Code, such as “insulting the Head of State”, which might discourage the media from publishing critical information on matters of public interest.[39]

40. The same Committee recommended that Suriname ensure that all allegations of intimidation, harassment and arbitrary detention of journalists and human rights defenders, including those working on anti-corruption or other issues of public interest, were

investigated promptly and effectively, that perpetrators were prosecuted and, if found guilty, punished with adequate sanctions and that victims were provided with effective remedies.[40]

41. The same Committee recommended that Suriname repeal or amend articles in the Penal Code that unduly restricted the right to criticize the executive branch of the Government and public authorities, including those relating to such vaguely defined offences as "insulting the Head of State".[41]

42. The same Committee recommended that Suriname consider decriminalizing defamation and restrict the application of criminal law to the most serious defamation cases, bearing in mind that imprisonment was never an appropriate penalty for defamation.[42]

43. The same Committee recommended that Suriname review and consider amending its legislation and practices to ensure that individuals fully enjoyed their right of peaceful assembly and to guarantee that any restrictions of that right complied with the strict requirements of article 21 of the International Covenant on Civil and Political Rights. In particular, Suriname should not subject the exercise of the right of peaceful assembly to a prior authorization requirement and should ensure that protest organizers and participants in assemblies were not, as a general rule, held responsible for damage caused by other participants in an assembly.[43]

5. Prohibition of all forms of slavery, including trafficking in persons

44. The same Committee was concerned about the continued prevalence of trafficking in persons, including children, for purposes of commercial sex exploitation and labour exploitation. It was particularly concerned about the low number of convictions for trafficking in persons.[44]

45. The same Committee recommended that Suriname: (a) enforce anti-trafficking legislation by conducting gender- and age-sensitive investigations and ensuring that perpetrators were prosecuted and, if found guilty, punished with appropriate penalties; (b) expand the number of shelters to provide effective access throughout the State and ensure the provision of adequate legal, medical and psychosocial assistance in those shelters; and (c) provide victims with effective remedies, including protection, rehabilitation and compensation.[45]

46. The ILO Committee of Experts on the Application of Conventions and Recommendations requested Suriname to continue to take measures to enhance the capacities of the police, migration officers and prosecutors for the identification and investigation of forced labour cases, including in remote areas.[46]

47. The same Committee encouraged Suriname to continue taking measures to protect migrant workers from abusive and fraudulent recruitment practices that could lead to situations of forced labour.[47]

6. Right to work and to just and favourable conditions of work

48. The same Committee reiterated its request to Suriname to adopt as soon as possible comprehensive legislation that: (a) defined and prohibited discrimination in all aspects of employment and occupation; (b) covered at least the grounds of race, colour, sex, religion, political opinion, national extraction and social origin; and (c) addressed both equality of treatment and equality of opportunity.[48]

49. The same Committee encouraged Suriname to consider the adoption of special measures to promote equality of opportunity and treatment in employment and occupation for categories in need of special protection or assistance, including persons with disabilities.[49]

50. The same Committee expressed the firm hope that the draft Industrial Accidents Act and the draft Occupational Safety and Health Act would be adopted in the near future and would be in compliance with the ratified international labour standards concerning employment injury protection at the time of its adoption.[50]

51. The Independent Expert on international solidarity stated that young men from the interior of Suriname were placed in vulnerable situations due to the lack of higher education opportunities, vocational training and alternative career options. They took up hunting,

fishing, logging and mining. Their exclusion from organized activities and vocational paths rendered them susceptible to recruitment by people offering financial reward for participation in illegal economic activities that could be harmful to their health and well-being.[51]

7. Right to an adequate standard of living

52. The same Independent Expert noted it was estimated that over 25 per cent of the population in the interior of Suriname lived below the poverty line. Those communities had indicated that they were completely excluded, despite the delivery of emergency humanitarian aid, and felt abandoned by both the Government and the international community.[52]

53. The United Nations Children's Fund (UNICEF) noted that children from rural areas, urban poor families, Indigenous communities and other marginalized groups suffered from multiple poverty-related deprivations.[53]

54. The Working Group of Experts on People of African Descent recommended that Suriname implement a comprehensive and inclusive housing strategy to address the housing crisis affecting people of African descent.[54]

55. The United Nations country team stated that access to safe drinking water and sanitation remained inequitable, with significant disparities between urban coastal areas and the interior. Indigenous and Maroon communities were disproportionately affected by limited access to clean water and sanitation infrastructure.[55]

8. Right to health

56. The Committee on the Elimination of Racial Discrimination was concerned about the obstacles to access to health services, due to the inadequate and limited infrastructure, as well as the limited access by Indigenous and tribal women to sexual and reproductive health services.[56]

57. UNICEF stated that access to primary healthcare in remote areas was undermined by shortages of medical personnel, high staff turnover, poor transportation services and lengthy travel times to healthcare facilities, especially in the hinterland.[57]

58. The United Nations country team recommended that Suriname strengthen maternal, neonatal and child health services, prioritizing quality, equity, emergency obstetric care and access for women and children in the interior and remote districts.[58]

59. The United Nations country team recommended that Suriname continue implementing the National Mental Health Plan of Action with enhanced resources for child and adolescent mental health services.[59]

60. UNESCO recommended that Suriname continue efforts to ensure comprehensive sexuality education.[60]

9. Right to education

61. The United Nations country team stated that government investment in quality education, including budget adjustments, had not been sufficient to address teacher shortages, the low quality of secondary education and substantial infrastructure gaps. Access to quality education remained limited, especially in the rainforest and for marginalized communities and children with disabilities.[61]

62. The Independent Expert on international solidarity stated that dropout rates from primary, secondary and vocational schools remained high.[62]

63. The United Nations country team stated that, while Suriname had abolished tuition fees for primary and lower secondary education, material cost fees persisted at those levels. That disproportionately burdened deprived, rural, Indigenous and Maroon families and remained a continuing barrier to equal access to education.[63]

64. The Independent Expert on international solidarity stated that there were few primary schools in the interior of Suriname. Those that did exist often started late in the calendar year. Teachers were unwilling to accept postings to the interior due to the lack of potable water, electricity and housing. Indigenous and tribal young people who wanted to attend high school had to migrate to the capital. Many of them could not afford to live in the city or meet other costs.[64]

65. The same Independent Expert recommended that Suriname ensure that all children and young people in the interior and the capital had access to primary, secondary, tertiary and vocational schools with appropriate infrastructure, including potable water, electricity, sanitation and access to information technology.[65]

66. The ILO Committee of Experts strongly urged Suriname to take all measures necessary to ensure that children had access to free basic education, including in remote areas. It also requested Suriname to take measures to improve school retention and completion rates at both primary and lower secondary education levels.[66]

67. The same Committee encouraged Suriname to take the measures necessary to raise the age of completion of compulsory education at least to the age specified by Suriname for admission to employment, which was 16 years of age.[67]

10. Development, the environment, and business and human rights

68. The Independent Expert on international solidarity stated that Indigenous and tribal peoples were concerned that the corporations that were engaged in extractive industries within their territories did not provide transparent, accessible mechanisms for them to submit solidarity demands regarding land rights, labour rights and environmental rights. Cases involved the lack of potable water, exposure to toxic substances, such as the mercury and cyanide used in gold mines, which entered the basic water source and contaminated fish, injuries and deaths in mines, noise and environmental pollution, violations of land rights and lack of restitution or compensation for displacement or eviction from property. Indigenous and tribal peoples were often left without an independent forum for effective dispute resolution. Neither extractive companies nor State bodies responded in a timely manner, leaving Indigenous and tribal communities abandoned and unprotected.[68]

69. The Committee on the Elimination of Racial Discrimination was concerned about reports of ongoing pollution – mercury and other toxics – on land and in rivers, resulting from gold mining, legal and illegal deforestation, road construction and illegal airstrips in the interior of Suriname, which had had a negative impact on the environment and on the means of subsistence and the health of Indigenous and tribal peoples.[69]

70. The Independent Expert on international solidarity noted that an increasing number of children were being born with disabilities as a result of the non-regulated use of mercury in the gold-mining industry.[70]

71. The United Nations country team recommended that Suriname establish monitoring mechanisms to assess and address water contamination from mining activities, particularly in Indigenous and Maroon territories.[71]

72. The Committee on the Elimination of Racial Discrimination recommended that Suriname strengthen its efforts to implement the prohibition of the importation and usage of mercury in the country, review and amend its legislative framework to introduce adequate penalties for the use of mercury and provide statistics on complaints received, cases investigated and prosecuted, and sanctions imposed for such acts. It also recommended that Suriname adopt measures to ensure that contaminated areas were cleaned and that the Indigenous and tribal peoples affected were given access to clean, drinkable water and healthcare and were entitled to effective remedies and adequate compensation for the territories contaminated by mercury.[72]

B. Rights of specific persons or groups

1. Women

73. The Human Rights Committee, while welcoming the adoption of the Violence and Sexual Harassment Act in October 2022, was concerned by the continued high prevalence of violence against women in Suriname, including domestic violence, and regretted the reportedly weak implementation of its legislative framework, in particular the Law on Combating Domestic Violence of 2009.[73]

74. The same Committee recommended that Suriname systematically undertake prompt, impartial and effective investigations to identify perpetrators of violence against women, prosecute them and, if they were found guilty, punish them commensurately with the gravity of the crime.[74]

75. The same Committee recommended that Suriname strengthen the availability and accessibility of legal, social and psychological assistance for victims of gender-based violence and expand the number of shelters in order to ensure effective access for women throughout the territory of the State and ensure the allocation of adequate funding.[75]

76. The same Committee was concerned that the Violence and Sexual Harassment Act did not apply to public servants, whose employment was regulated by the Personnel Act of 1962.[76]

77. The same Committee was concerned about the persistence of negative gender stereotypes and the continued low representation of women in public and political life, particularly in decision-making positions.[77]

78. The United Nations country team recommended that Suriname continue implementing the Gender Vision Policy Document 2021–2035.[78]

2. Children

79. The United Nations country team stated that discrimination against marginalized children, including Indigenous and Maroon children, children of Haitian migrants, children living with HIV/AIDS and LGBTI children, persisted and was compounded by weak enforcement of anti-discrimination laws.[79]

80. The United Nations country team stated that children living in remote interior regions continued to face acute deprivations of healthcare, nutrition, clean water, housing and quality education.[80]

81. UNICEF stated that children in Suriname experienced frequent and multiple forms of physical, emotional and verbal abuse and violence. The lack of social protection measures contributed to the cycle of domestic violence, abuse and neglect. The most vulnerable children belonged to already disadvantaged groups, namely, Indigenous and tribal peoples and the urban poor. That amplified the urgent need for adequate investment in social services and the provision of child-sensitive, risk-informed and portable social protection systems that reached those most in need.[81]

82. The Human Rights Committee recommended that Suriname take effective measures to ensure that all cases of child abuse were effectively investigated, that perpetrators were prosecuted and, if found guilty, sanctioned commensurately with the gravity of the crime, and that child victims had access to adequate remedies, including specialized care.[82]

83. The ILO Committee of Experts reiterated its request that Suriname continue to take measures, including within the framework of the National Action Plan on Child Labour, to ensure the progressive elimination of child labour.[83]

84. The same Committee requested Suriname to take the measures necessary to ensure that no child was engaged in hazardous work in mining, including by strengthening the capacities of the labour inspectorate to conduct visits in regions where informal mining was prevalent.[84]

85. The Human Rights Committee recommended that Suriname take appropriate steps to put an end to the corporal punishment of children in all settings, including by prohibiting corporal punishment by parents in the draft New Civil Code.[85]

86. UNESCO recommended that Suriname legally proscribe corporal punishment in education settings.[86]

87. UNESCO recommended that Suriname amend its legislation to ensure that the minimum age of marriage was 18 years old without exception.[87]

3. Persons with disabilities

88. The Independent Expert on international solidarity stated that persons with disabilities in Suriname faced various constraints in their daily lives and were marginalized from the rest of society. In terms of transportation and accessibility, there were no laws or State programmes on making buildings accessible to persons with disabilities. That posed a major constraint in terms of granting persons with disabilities access to work and education. A lack of policies to improve employment combined with inadequate welfare provision meant that most persons with disabilities lived below the poverty line.[88]

89. UNICEF stated that many schools were not accessible to children with disabilities.[89]

90. The United Nations country team recommended that Suriname implement specific measures to promote inclusive education for children with disabilities, including teacher training and adaptation of learning environments.[90]

4. Indigenous Peoples

91. The Independent Expert on international solidarity stated that the Indigenous and tribal communities, which were dispersed throughout the interior of the country, lived at subsistence level, often lacking potable water, electricity, healthcare and employment. There was a lack of health clinics, legal aid services and banking services. One of the most significant challenges was the recruitment and retention of specialist healthcare workers, including nurses, in the interior.[91]

92. The Human Rights Committee remained concerned that Indigenous and tribal peoples were not sufficiently consulted on decisions that had an impact on their rights, notably as regarded obtaining their free, prior and informed consent for the granting of concessions, extractive licences or easements on or near their traditional lands, including for the exploitation of minerals, forests and oil and gas deposits.[92]

93. The Committee on the Elimination of Racial Discrimination was concerned about the delay in developing and finalizing a legislative framework on free, prior and informed consent regarding development projects on Indigenous lands and in ensuring that such consent was obtained before lands were expropriated, and about the absence of available remedies, including compensation.[93]

94. The Human Rights Committee called upon Suriname to adopt measures to ensure meaningful consultation with Indigenous and tribal peoples on any current or future projects or legislative or administrative measures that might affect their lands, territories and resources, including by adopting a comprehensive legislative framework for obtaining their free, prior and informed consent.[94]

95. The Committee on the Elimination of Racial Discrimination recommended that Suriname take measures to develop and recognize the collective rights of Indigenous and tribal peoples to own, develop, control and use their lands, resources and communal territories according to customary laws and traditional land-tenure systems and to participate in the exploitation, management and conservation of the associated natural resources through their institutions in accordance with their own traditions.[95]

96. The Human Rights Committee called upon Suriname: (a) to expedite the adoption, within a clear time frame, of the draft law on the collective rights of Indigenous and tribal peoples and the demarcation of their lands, territories and resources, with the effective and meaningful participation of Indigenous and tribal peoples; and (b) to ensure that no State-held land claimed by Indigenous and tribal peoples was sold or leased to private entities

until the collective land rights of Indigenous and tribal peoples had been recognized in the draft Indigenous and Tribal Peoples' Collective Rights Act.[96]

97. The same Committee called upon Suriname to take measures to ensure restitution to Indigenous and tribal peoples of their traditional lands, territories and resources that had been confiscated, occupied, used or damaged without their free, prior and informed consent and, only where that was not possible, to provide them with just and fair compensation.[97]

98. The same Committee was concerned about the obstacles to access to justice for Indigenous and tribal peoples, including the lack of recognition of collective legal personality or collective rights, as well as geographical, cost, language and educational barriers.[98]

99. The same Committee recommended that Suriname enact legislation on the rights of Indigenous and tribal peoples, recognizing their legal personality and standing before the law, including the recognition of collective legal personality and collective rights.[99]

100. The same Committee was concerned that Indigenous and tribal peoples were not sufficiently included in public affairs, in particular political decision-making, and that amendments in 2023 to the Constitution and electoral regulations following the Constitutional Court's 2022 ruling might further reduce the ability of Indigenous and tribal peoples to influence public policy.[100]

5. Lesbian, gay, bisexual, transgender and intersex persons

101. The same Committee was concerned about credible reports indicating that incidents of discrimination, harassment or violence against lesbian, gay, bisexual and transgender persons, including by police, occurred on a regular basis, with violence against transgender persons and discrimination in access to healthcare being of particular concern. It recommended that Suriname ensure that allegations of all such incidents were thoroughly investigated, that perpetrators were prosecuted and, if found guilty, adequately punished and that victims were provided with effective remedies.[101]

102. The same Committee recommended that Suriname combat prejudice and hate speech against lesbian, gay, bisexual and transgender persons, including by providing appropriate training to judges, prosecutors, law enforcement and other officials on combating discriminatory attitudes towards those persons and by conducting awareness-raising activities aimed at the general public.[102]

103. The same Committee was concerned about the lack of legal recognition of same-sex couples, which resulted in same-sex couples facing discrimination, particularly with regard to access to social security and pension schemes.[103]

6. Migrants, refugees and asylum-seekers

104. The United Nations country team recommended that Suriname enact national asylum and refugee legislation in accordance with the Convention relating to the Status of Refugees, formally establishing legal protections, refugee status determination procedures and the rights to non-refoulement, non-penalization for irregular entry and non-detention of children and families.[104]

105. The Committee on the Elimination of Racial Discrimination was concerned that migrants, asylum-seekers and refugees were victims of prejudices, stereotypes and discriminatory acts and faced major difficulties accessing employment and basic services, especially healthcare services and education, owing to, among other things, their lack of identity documents.[105]

106. The Human Rights Committee recommended that Suriname ensure that immigration detention was always a measure of last resort applied for the shortest possible period, that statutory limits to the duration of immigration detention were respected in practice and that detained migrants were provided with effective access to appeal their detention.[106]

7. Stateless persons

107. The same Committee recommended that Suriname take appropriate measures to ensure that all children born in its territory were registered and received an official birth certificate, including by ensuring that birth registration procedures were accessible to persons unable to speak the official language.[107]

108. The same Committee recommended that Suriname carry out campaigns, particularly in remote areas of the country, to raise awareness of the birth registration procedure and the importance of birth registration for all children, including children born to migrant workers in both regular and irregular situations.[108]

109. The same Committee recommended that Suriname establish a statelessness determination procedure.[109]

Notes

1 A/HRC/49/6, A/HRC/49/6/Add.1 and A/HRC/49/2.
2 CERD/C/SUR/CO/16-18, para. 37.
3 CCPR/C/SUR/CO/4, para. 22 (d).
4 UNESCO submission for the universal periodic review of Suriname, para. 34 (vi).
5 United Nations country team submission for the universal periodic review of Suriname, para. 3.
6 CCPR/C/SUR/CO/4, para. 36.
7 See https://www.ohchr.org/sites/default/files/documents/issues/racism/wgeapd/statements/eom-statement-WGEPAD-Suriname-2025.pdf, p. 3.
8 CERD/C/SUR/CO/16-18, para. 37.
9 UNESCO submission, para. 27 (i).
10 United Nations country team submission, para. 9 (a).
11 CCPR/C/SUR/CO/4, paras. 47 and 48 (e). See also CERD/C/SUR/CO/16-18, paras. 27 and 28.
12 CERD/C/SUR/CO/16-18, para. 10. See also CCPR/C/SUR/CO/4, para. 14 (a); and https://www.ohchr.org/sites/default/files/documents/issues/racism/wgeapd/statements/eom-statement-WGEPAD-Suriname-2025.pdf, p. 3.
13 CERD/C/SUR/CO/16-18, para. 16.
14 United Nations country team submission, para. 97 (c).
15 Ibid., para. 24 (a).
16 CCPR/C/SUR/CO/4, para. 6. See also CERD/C/SUR/CO/16-18, para. 14; and United Nations country team submission, para. 19.
17 CCPR/C/SUR/CO/4, para. 22 (d).
18 United Nations country team submission, paras. 18 and 19 (c).
19 A/HRC/59/40/Add.2, para. 50.
20 CERD/C/SUR/CO/16-18, para. 11.
21 Ibid., para. 29.
22 United Nations country team submission, para. 21.
23 See https://www.ohchr.org/sites/default/files/documents/issues/racism/wgeapd/statements/eom-statement-WGEPAD-Suriname-2025.pdf, p. 5.
24 CCPR/C/SUR/CO/4, para. 21.
25 Ibid., para. 22 (c).
26 United Nations country team submission, para. 38 (d).
27 CCPR/C/SUR/CO/4, paras. 25 and 26 (a).
28 Ibid., para. 28.
29 See https://www.ohchr.org/sites/default/files/documents/issues/racism/wgeapd/statements/eom-statement-WGEPAD-Suriname-2025.pdf, p. 6.
30 CCPR/C/SUR/CO/4, para. 30.
31 Ibid., para. 26 (d).
32 Ibid., para. 11.
33 United Nations country team submission, para. 34 (a).
34 Ibid., para. 34 (b).
35 CCPR/C/SUR/CO/4, para. 24 (a).
36 Ibid., para. 24 (b).
37 United Nations country team submission, para. 38 (a).
38 CCPR/C/SUR/CO/4, para. 8 (b) and (c).
39 Ibid., para. 39.
40 Ibid., para. 40 (c).

[41] Ibid., para. 40 (a).
[42] CCPR/C/SUR/CO/4, para. 40 (b). See also United Nations country team submission, para. 44 (a).
[43] CCPR/C/SUR/CO/4, para. 42.
[44] Ibid., para. 31.
[45] Ibid., para. 32 (b), (d) and (e).
[46] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4399831,103287:NO.
[47] Ibid.
[48] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4419482,103287:NO.
[49] Ibid.
[50] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4397942,103287:NO.
[51] A/HRC/59/40/Add.2, para. 56.
[52] Ibid., para. 52.
[53] E/ICEF/2022/P/L.9, para. 2.
[54] See https://www.ohchr.org/sites/default/files/documents/issues/racism/wgeapd/statements/eom-statement-WGEPAD-Suriname-2025.pdf, p. 8.
[55] United Nations country team submission, para. 58.
[56] CERD/C/SUR/CO/16-18, para. 29 (c).
[57] E/ICEF/2022/P/L.9, para. 7.
[58] United Nations country team submission, para. 65 (a).
[59] Ibid., para. 65 (b).
[60] UNESCO submission, para. 27 (xv).
[61] United Nations country team submission, para. 69.
[62] A/HRC/59/40/Add.2, para. 58.
[63] United Nations country team submission, para. 68.
[64] A/HRC/59/40/Add.2, para. 55.
[65] Ibid., para. 86 (m).
[66] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4397585,103287:NO.
[67] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4116028,103287:NO.
[68] A/HRC/59/40/Add.2, para. 77.
[69] CERD/C/SUR/CO/16-18, para. 25.
[70] A/HRC/59/40/Add.2, para. 84.
[71] United Nations country team submission, para. 59 (b).
[72] CERD/C/SUR/CO/16-18, para. 26.
[73] CCPR/C/SUR/CO/4, para. 19.
[74] Ibid., para. 20 (a).
[75] Ibid., para. 20 (b).
[76] Ibid., para. 19.
[77] Ibid., para. 17.
[78] United Nations country team submission, para. 94 (a).
[79] Ibid., para. 76.
[80] Ibid., para. 77.
[81] E/ICEF/2022/P/L.9, paras. 10 and 11.
[82] CCPR/C/SUR/CO/4, para. 44.
[83] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4397082,103287:NO.
[84] See https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:13100:0::NO:13100:P13100_COMMENT_ID,P13100_COUNTRY_ID:4397585,103287:NO.
[85] CCPR/C/SUR/CO/4, para. 44.
[86] UNESCO submission, para. 27 (ix).
[87] Ibid., para. 27 (viii).
[88] A/HRC/59/40/Add.2, para. 84.
[89] E/ICEF/2022/P/L.9, para. 18.
[90] United Nations country team submission, para. 97 (a).
[91] A/HRC/59/40/Add.2, para. 52.
[92] CCPR/C/SUR/CO/4, para. 47.
[93] CERD/C/SUR/CO/16-18, para. 23 (b).
[94] CCPR/C/SUR/CO/4, para. 48 (c).
[95] CERD/C/SUR/CO/16-18, para. 24 (a).

[96] CCPR/C/SUR/CO/4, para. 48 (a) and (b).
[97] Ibid., para. 48 (d).
[98] Ibid., para. 37.
[99] Ibid., para. 38 (b).
[100] Ibid., para. 45.
[101] Ibid., paras. 15 and 16 (d).
[102] Ibid., para. 16 (e).
[103] Ibid., para. 15.
[104] United Nations country team submission, para. 99 (a).
[105] CERD/C/SUR/CO/16-18, para. 31.
[106] CCPR/C/SUR/CO/4, para. 34 (c).
[107] Ibid., para. 36.
[108] Ibid.
[109] Ibid.